

# HOUSE . . . . . No. 1852

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Jay D. Livingstone***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting discrimination against adults with disabilities in Family and Juvenile Court proceedings.

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PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:                        | DATE ADDED:       |
|----------------------------|------------------------------------------|-------------------|
| <i>Jay D. Livingstone</i>  | <i>8th Suffolk</i>                       | <i>1/15/2025</i>  |
| <i>Joanne M. Comerford</i> | <i>Hampshire, Franklin and Worcester</i> | <i>2/26/2025</i>  |
| <i>James B. Eldridge</i>   | <i>Middlesex and Worcester</i>           | <i>5/22/2025</i>  |
| <i>Natalie M. Higgins</i>  | <i>4th Worcester</i>                     | <i>6/11/2025</i>  |
| <i>Lindsay N. Sabadosa</i> | <i>1st Hampshire</i>                     | <i>6/11/2025</i>  |
| <i>Joan B. Lovely</i>      | <i>Second Essex</i>                      | <i>7/30/2025</i>  |
| <i>Marjorie C. Decker</i>  | <i>25th Middlesex</i>                    | <i>10/28/2025</i> |

# HOUSE . . . . . No. 1852

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By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 1852) of Jay D. Livingstone and Joanne M. Comerford relative to adults with disabilities in family and juvenile court proceedings. The Judiciary.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act prohibiting discrimination against adults with disabilities in Family and Juvenile Court proceedings.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 208 of the General Laws is hereby amended by inserting after  
2           section 31A the following section:-

3           Section 31B. For the purposes of this chapter the following words shall have the  
4           following meanings, unless the context clearly indicates otherwise:-

5           “Adaptive parenting equipment”, any piece of equipment or any item used to increase,  
6           maintain, or improve the parenting capabilities of a parent with a disability.

7           “Disability”, a physical or mental impairment that substantially limits one or more major  
8           life activities of an individual, a record of such impairment, or being regarded as having such an  
9           impairment. This definition shall be broadly interpreted in a manner consistent with the  
10          Americans with Disabilities Act Amendments Act of 2008.

“Supportive parenting services”, services that help a parent with a disability compensate for those aspects of the disability that affect their ability to care for their children and that will enable them to discharge their parental responsibilities, including, but not limited to, specialized or adapted training, evaluations, assistance with effective use of adaptive equipment, peer supports or other psychosocial parental skill building therapies or services, and accommodations that allow a parent with a disability to benefit from other services, such as braille text or sign language interpreters.

Nothing in this chapter shall allow a parent’s disability or its manifestations to be considered a negative factor in a determination of custody or of parenting time with a minor child, absent a specific showing by a preponderance of the evidence made by the party raising the allegation, that there is a nexus between the parent’s disability, or its manifestations, and alleged harm to the child, and that this alleged harm cannot be prevented or alleviated by accommodations for the disability, including adaptive parenting equipment or supportive parenting services.

If the court considers a parent’s disability or its manifestations as a negative factor in an award of custody or of parenting time with a child, then the court shall make specific written findings as to the nexus between the parent’s disability, or its manifestations, and harm to the child, what effect, if any, said harm has on the best interests of the child, and whether adaptive parenting equipment or supportive parenting services can alleviate said harm.

SECTION 2. Chapter 209C of the General Laws is hereby amended by inserting after section 10 the following section:-

Section 10A. For the purposes of this chapter the following words shall have the following meanings, unless the context clearly indicates otherwise:-

“Adaptive parenting equipment”, includes any piece of equipment or any item used to increase, maintain, or improve the parenting capabilities of a parent with a disability.

“Disability”, a physical or mental impairment that substantially limits one or more major life activities of an individual, a record of such impairment, or being regarded as having such an impairment. This definition shall be broadly interpreted in a manner consistent with the Americans with Disabilities Act Amendments Act of 2008.

“Supportive parenting services”, services that help a parent with a disability compensate for those aspects of the disability that affect their ability to care for their children and that will enable them to discharge their parental responsibilities, including, but not limited to, specialized or adapted training, evaluations, assistance with effective use of adaptive equipment, peer supports or other psychosocial parental skill building therapies or services, and accommodations that allow a parent with a disability to benefit from other services, such as braille text or sign language interpreters.

Nothing in this chapter shall allow a parent’s disability or its manifestations to be considered a negative factor in a determination of custody or of parenting time with a minor child, absent a specific showing by a preponderance of the evidence made by the party raising the allegation, that there is a nexus between the parent’s disability, or its manifestations, and alleged harm to the child, and that this alleged harm cannot be prevented or alleviated by accommodations for the disability, including adaptive parenting equipment or supportive parenting services.

54 If the court considers a parent’s disability or its manifestations as a negative factor in an  
55 award of custody of and or parenting time with a child, then the court shall make specific written  
56 findings as to the nexus between the parent’s disability, or its manifestations, and harm to the  
57 child, what effect, if any, said harm has on the best interests of the child, and whether adaptive  
58 parenting equipment or supportive parenting services can alleviate said harm.

59 SECTION 3. Section 21 of chapter 119 of the General Laws is hereby amended by  
60 inserting after the second paragraph the following paragraph:-

61 “Adaptive parenting equipment”, includes any piece of equipment or any item used to  
62 increase, maintain, or improve the parenting capabilities of a parent with a disability.

63 SECTION 4. Section 21 of said chapter 119, as so appearing, is hereby further amended  
64 by inserting after the eleventh paragraph the following paragraph:-

65 “Disability”, a physical or mental impairment that substantially limits one or more major  
66 life activities of an individual, a record of such impairment, or being regarded as having such an  
67 impairment. This definition shall be broadly interpreted in a manner consistent with the  
68 Americans with Disabilities Act Amendments Act of 2008.

69 SECTION 5. Section 21 of said chapter 119, as so appearing, is hereby further amended  
70 by inserting after the twenty second paragraph the following paragraph:-

71 “Supportive parenting services”, services that help a parent with a disability compensate  
72 for those aspects of the disability that affect their ability to care for their children and that will  
73 enable them to discharge their parental responsibilities, including, but not limited to, specialized  
74 or adapted training, evaluations, assistance with effective use of adaptive equipment, peer

75 supports or other psychosocial parental skill building therapies or services, and accommodations  
76 that allow a parent with a disability to benefit from other services, such as braille text or sign  
77 language interpreters.

78 SECTION 6. Chapter 119 of the General Laws is hereby further amended by inserting  
79 after section 24 the following section:-

80 Section 24A. Nothing in this chapter shall allow a parent's disability or its  
81 manifestations, as defined in section 21 of this chapter, to be considered a negative factor in a  
82 determination of whether a child is in need of care and protection or for the removal of custody  
83 of a child from a parent, guardian, or other custodian, absent a specific showing by clear and  
84 convincing evidence made by the department, that there is a nexus between the parent's  
85 disability, or its manifestations, and alleged harm to the child, and that this alleged harm cannot  
86 be prevented or alleviated by accommodations for the disability, including adaptive parenting  
87 equipment or supportive parenting services.

88 If the court considers a parent's disability or its manifestations as a negative factor in  
89 determining that a child is in need of care and protection or for the removal of custody of a child  
90 from a parent, guardian, or other custodian, then the court shall make specific written findings as  
91 to the nexus between the parent's disability, or its manifestations, and harm to the child, the  
92 impact this has on current parental fitness, and whether adaptive parenting equipment or  
93 supportive parenting services can alleviate said harm or render the parent fit.

94 SECTION 7. Section 3 of chapter 210 of the General Laws is hereby amended by striking  
95 out subsection (c)(xii) and inserting in place thereof the following subsection:-

Section 3(c)(xii). A failure of a parent to discharge parental responsibilities that is reasonably likely to continue for a prolonged, indeterminate period, and that results in harm to the child, and cannot be alleviated by adequate accommodations, including adaptive parenting equipment or supportive parenting services.

SECTION 8. Chapter 210, as so appearing, is hereby further amended by inserting after section 3B the following section:-

Section 3C. For the purposes of this chapter the following words shall have the following meanings, unless the context clearly indicates otherwise:-

“Adaptive parenting equipment”, includes any piece of equipment or any item used to increase, maintain, or improve the parenting capabilities of a parent with a disability.

“Disability”, a physical or mental impairment that substantially limits one or more major life activities of an individual, a record of such impairment, or being regarded as having such an impairment. This definition shall be broadly interpreted in a manner consistent with the Americans with Disabilities Act Amendments Act of 2008.

“Supportive parenting services”, services that help a parent with a disability compensate for those aspects of the disability that affect their ability to care for their children and that will enable them to discharge their parental responsibilities, including but not limited to, specialized or adapted training, evaluations, assistance with effective use of adaptive equipment, peer supports or other psychosocial parental skill building therapies or services, and accommodations that allow a parent with a disability to benefit from other services, such as braille text or sign language interpreters.

Nothing in this chapter shall allow a parent's disability or its manifestations to be considered a negative factor in determining whether to terminate parental rights, absent a specific showing by clear and convincing evidence made by the department, that there is a nexus between the parent's disability, or its manifestations, and alleged harm to the child, and that this alleged harm cannot be prevented or alleviated by accommodations for the disability, including adaptive parenting equipment or supportive parenting services.

If the court considers a parent's disability or its manifestations as a negative factor in determining whether to terminate parental rights, then the court shall make specific written findings as to the nexus between the parent's disability, or its manifestations, and harm to the child, the impact this has on current parental fitness, and whether adaptive parenting equipment or supportive parenting services can alleviate said harm or render the parent fit; provided further, the court shall dismiss the department's petition under this section if the court finds that the department acted in violation of this subsection of section 3, or 42 U.S.C. 12132 or 29 U.S.C. 794.

SECTION 9. Section 5-101 of chapter 190B of the General Laws is hereby amended by inserting before the first paragraph the following paragraph:-

"Adaptive parenting equipment", includes any piece of equipment or any item used to increase, maintain, or improve the parenting capabilities of a parent with a disability.

SECTION 10. Section 5-101 of said chapter 190B, as so appearing, is hereby further amended by striking out the fourth paragraph and inserting in place thereof the following paragraph:-



“Disability”, a physical or mental impairment that substantially limits one or more major life activities of an individual, a record of such impairment, or being regarded as having such an impairment. This definition shall be broadly interpreted in a manner consistent with the Americans with Disabilities Act Amendments Act of 2008.

SECTION 11. Section 5-101 of said chapter 190B, as so appearing, is hereby further amended by inserting after the twenty fourth paragraph the following paragraph:-

“Supportive parenting services”, services that help a parent with a disability compensate for those aspects of the disability that affect their ability to care for their children and that will enable them to discharge their parental responsibilities, including, but not limited to, specialized or adapted training, evaluations, assistance with effective use of adaptive equipment, peer supports or other psychosocial parental skill building therapies or services, and accommodations that allow a parent with a disability to benefit from other services, such as braille text or sign language interpreters.

SECTION 12. Chapter 190B of the General Laws is hereby amended by inserting after section 5-204 the following section:-

Section 5-204A. Nothing in this chapter shall allow a parent’s disability or its manifestations to be considered a negative factor in determining whether to appoint a temporary or permanent guardian for a minor child, absent a specific showing by clear and convincing evidence made by the party raising the allegation, that there is a nexus between the parent’s disability, or its manifestations, and alleged harm to the child, and that this alleged harm cannot be prevented or alleviated by accommodations for the disability, including adaptive parenting equipment or supportive parenting services.

160           If the court considers a parent's disability or its manifestations as a negative factor in a  
161   determination of whether to appoint a temporary or permanent guardian for a minor child, then  
162   the court shall make specific written findings as to the nexus between the parent's disability, or  
163   its manifestations, and harm to the child, the impact this has on current parental fitness, and  
164   whether adaptive parenting equipment or supportive parenting services can alleviate said harm or  
165   render the parent fit.